DataQ Filing Handbook v3

Effective 2026-09-18. Replaces all earlier guidance. Fictional and simplified for this exercise.

H1. General rules

H1.1 A request for data review (RDR) asks a government agency to correct a roadside inspection or crash record. Staff decide and submit. Software may only recommend and draft.

H1.2 Every recommendation is one of FILE, DO_NOT_FILE or NEEDS_MORE_INFO.

H1.3 A request needs documentary evidence. A statement from a driver or staff member is not evidence by itself. If the required document is missing, the recommendation is NEEDS_MORE_INFO.

H2. Filing windows

H2.1 An inspection request must be filed within 3 years of the inspection date. After that, the recommendation is DO_NOT_FILE, however strong the evidence.

H2.2 A crash request must be filed within 5 years of the crash date.

H3. Request types

H3.1 Use the exact request type name below.

Request type	Rule section
Inspection - Incorrect Violation	H4
Inspection - Assigned to Wrong Carrier	H5
Inspection - Citation with Associated Violation	H6
Inspection - Duplicate Record	H7
Inspection - Incorrect Information	H8
Crash Preventability Determination	H9

H4. Incorrect violation

H4.1 File when evidence shows the violation code is wrong, the same violation was listed twice in error, or intermodal equipment provider or shipper information is missing from the report.

H4.2 Do not file because a defect was repaired after the inspection. A later repair does not remove a violation.

H4.3 Do not file to ask for a newer violation code to be applied retroactively.

H5. Assigned to wrong carrier

H5.1 File when documents show the unit or driver was not operating for this carrier on the inspection date, such as a lease that ended before that date.

H5.2 Do not file when a lease or vehicle markings show the unit was operating under this carrier on that date. An owner-operator under an active lease counts as this carrier.

H6. Citation with associated violation

H6.1 Use the court result in the table. Use the result written on the court document, not the staff description.

Court result	Recommendation	Effect if accepted
Not Guilty	FILE	Violation removed

Court result	Recommendation	Effect if accepted
Dismissed, no fine or costs	FILE	Violation removed
Conviction of a Different Charge	FILE	Severity weight reduced to 1
Dismissed with fine or court costs	DO_NOT_FILE	Violation stays
Conviction of Original Charge	DO_NOT_FILE	Violation stays
Held in abeyance	NEEDS_MORE_INFO	Wait for a final result

H6.2 This section applies to inspections on or after 2014-08-23.

H7. Duplicate record

H7.1 File when the same inspection is listed more than once: same report number, date, time, location and unit.

H7.2 Do not file for separate events on the same day. Different report numbers, times or locations mean separate events. One download row per violation is not a duplicate.

H8. Incorrect information

H8.1 File when a source document confirms a wrong VIN, plate, inspection level, location or similar fact.

H8.2 Do not file when the report matches the source document.

H9. Crash preventability determination

H9.1 A police accident report is required and the crash must be under 5 years old. If the police report is missing, the recommendation is NEEDS_MORE_INFO.

H9.2 The crash must be one of these eligible types:

Eligible crash type
Struck in the rear
Struck while legally parked
Struck by a vehicle crossing the median
Struck by a vehicle travelling in the wrong direction
Animal strike
Struck by cargo falling from another vehicle

H9.3 A fatal crash where the carrier's driver has a positive or refused drug or alcohol test is treated as Preventable. The recommendation is DO_NOT_FILE, even for an eligible crash type.

H10. Review timing

H10.1 Review levels are Initial (21 days), Reconsideration (21 days) and Final (45 days). A requester has 30 days to escalate.

H10.2 When the agency asks for a reply, the requester has 14 calendar days. After that the request closes.

H11. Draft narrative

H11.1 Write a draft only when the recommendation is FILE.

H11.2 State only facts found in the record or the evidence. Name the document that supports each fact.

H11.3 Keep the draft under 120 words, in plain and factual language.